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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
Carbone, Smith & Koyama, LLP;
Michael R. Chambers;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
and DOES 1 through 20, inclusive;
DEFENDANTS

Case No.: CGC-25-631801
(Related: CGC-21-594102)

**CURE MATRIX — DEFENSE
OBJECTION MAP**

SECOND-LAYER CURE MATRIX IF SAC DEFECTS SURVIVE

Case No.: CGC-25-631801

Subject: Third Amended Complaint for Extrinsic Fraud

Status: CONTINGENT — filed only if Round D defects surface after SAC ruling

Purpose: Maps each defense objection from the April 22, 2026 CCP § 436 Motion to Strike to the specific TAC paragraph(s) that cure it.

First Cure: SAC-leave motion (hearing May 6, 2026)

Second Cure: This TAC packet (hearing TBD on OST if needed)

Underlying Action: Rosario v. Abdelhalim, Case No. CGC-21-594102

MASTER CURE MATRIX — NINE DEFENSE OBJECTIONS

#	Defense		TAC				
	Defense Objection	MPA Basis	TAC Cure	Section/¶¶	Key Authority	Cal. Supreme Court Anchor	Bench Brief/SAC Back-Reference
1	<u>Kulchar</u> extrinsic-fraud not viable	Independent equity action improper	Four-channel frame-work; judicial-reliance quote; seven con-se-quential rul-ings; Supreme Court spine §I.4.5	§I, ¶¶ 1–7, 7.5; §I.4.5, ¶¶ 3.5–3.7; §I.5, ¶¶ 4–6	<u>Kougasian v. TMSL</u> (2004) 118 Cal.App.4th 1028	<u>Kulchar v. Kulchar</u> (1969) 1 Cal.3d 467, 471; <u>In re Marriage of Modnick</u> (1983) 33 Cal.3d 897, 905; <u>Estate of Sanders</u> (1985) 40 Cal.3d 607, 614	Bench Brief §§I.A-I.C

		Defense	TAC				
#	Defense Objection	MPA Basis	TAC Cure	Sec- tion/¶¶	Key Au- thority	Cal. Supreme Court Anchor	Bench Brief/SAC Back-Reference
2	Appeal A173827 is the remedy	CCP § 904.1 routing	<u>Kougasis</u> inde- pen- dent ac- tion doc- trine; <u>Throckmorton</u> pre- rebuttal	<u>§ 1155</u> 28–31	<u>In re</u> <u>Marriage</u> <u>of</u> <u>Stevenot</u> (1984) 154 Cal.App.3d 1051	<u>Estate of</u> <u>Sanders</u> (1985) 40 Cal.3d 607, 614 (independent action in equity recognized by Supreme Court)	Bench Brief Part VII

#	Defense	Defense	TAC		Key Au- thority	Cal. Supreme Court Anchor	Bench Brief/SAC Back-Reference
	Objection	MPA Basis	TAC Cure	Sec- tion/¶¶			
3	Civil Code § 47(b) privilege bars claims	Litigation privilege	Nine- Point Evi- den- tiary Chain; non- communicative con- duct; <u>Flatley</u> ille- gality an- chor; <u>Action</u> <u>Apartment</u> extrinsic- fraud ex- cep- tion	§II, ¶¶ 8–13	<u>Flatley</u> v. <u>Mauro</u> (2006) 39 Cal.4th 299; <u>Action</u> <u>Apartment</u> (2007) 41 Cal.4th 1232	<u>Estate of</u> <u>Sanders</u> (1985) 40 Cal.3d 607, 614 (equity exception); <u>In</u> <u>re Marriage of</u> <u>Modnick</u> (1983) 33 Cal.3d 897, 907 (concealment as fraud)	SAC-06 §IV.D.0

#	Defense Objection	Defense	TAC				
		MPA Basis	TAC Cure	Sec- tion/¶¶	Key Au- thority	Cal. Supreme Court Anchor	Bench Brief/SAC Back-Reference
4	Standing — <u>Shaolian/Nor</u>	Attorney- client priority	<u>Estate</u> <u>of</u> <u>Sanders</u> dis- tinc- tion; new ¶ 15.5 officer- of- court fiduciary- duty the- ory; <u>Doctors’</u> <u>Company</u> aiding- and- abetting frame- work; Civ. Code § 2338 agency/ratification	§III, ¶¶ 14–21, 15.5	<u>Estate</u> <u>of</u> <u>Sanders</u> (1985) 40 Cal.3d 607; <u>Doctors’</u> <u>Company</u> (1989) 49 Cal.3d 39	<u>Estate of</u> <u>Sanders</u> (1985) 40 Cal.3d 607, 615 (fiduciary- concealment holding)	Bench Brief §II.F; SAC-06 ¶¶ 7–14

#	Defense Objection	Defense	TAC		Key Au- thority	Cal. Supreme Court Anchor	Bench Brief/SAC Back-Reference
		MPA Basis	TAC Cure	Sec- tion/¶¶			
5	Collateral estoppel / res judicata	Underlying judgment preclusive	Five- issues- not- adjudicated block; primary- rights com- pari- son table; <u>Mycogen/Boeken</u> same- primary- right test; new ¶ 26.5 four- Supreme- Court recital	§IV, ¶¶ 22–27, 26.5	<u>Lucido</u> v. <u>Superior</u> <u>Court</u> (1990) 51 Cal.3d 335; <u>Mycogen</u> (2002) 28 Cal.4th 888	<u>Mycogen</u> , 28 Cal.4th at 904; <u>Boeken v.</u> <u>Philip Morris</u> <u>USA</u> (2010) 48 Cal.4th 788, 798; <u>Crowley</u> v. <u>Katleman</u> (1994) 8 Cal.4th 666, 681–682; <u>Lucido</u> , 51 Cal.3d at 341	SAC-06 §IV.B

#	Defense Objection	Defense	TAC		Key Au- thority	Cal. Supreme Court Anchor	Bench Brief/SAC Back-Reference
		MPA Basis	TAC Cure	Sec- tion/¶¶			
6	CCP § 1032 prevailing- party overlap	Costs already adjudi- cated	Express §V, ¶ dis- claimer (§V, ¶ 32(b)) — no re- cov- ery of prevailing- party costs ex- cept via va- catur	32(b)	—	Same primary-rights anchors as Objection 5 (no standalone Supreme Court anchor required)	—

#	Defense Objection	Defense	TAC		Key Au- thority	Cal. Supreme Court Anchor	Bench Brief/SAC Back-Reference
		MPA Basis	TAC Cure	Sec- tion/¶¶			
7	Damages duplica- tive of PI case	Personal injury damages re- litigated	Reserva- para- graph; ex- press dis- claimers; fraud- delta limi- ta- tion; new §IV.5.5 “Op- por- tu- nity to Present, Not Ad- mis- sion”	§IV.5.5, ¶ 34.7	—	<u>Westphal v.</u> <u>Westphal</u> (1942) 20 Cal.2d 393, 397; <u>Modnick</u> , 33 Cal.3d at 907 (deprivation, not exhibit count)	—

#	Defense	Defense	TAC		Key Au- thority	Cal. Supreme Court Anchor	Bench Brief/SAC Back-Reference
	Objection	MPA Basis	TAC Cure	Sec- tion/¶¶			
8	IIED / <u>Ribas</u> claim improper	Standalone emotional distress	No stan- dalone IIED claim as- serted; emo- tional dis- tress pleaded as eq- uity fac- tor only	§VI, Tier 4, ¶ 38	—	<u>Estate of Sanders</u> (1985) 40 Cal.3d 607, 614 (equity-factor frame; no standalone IIED)	—

#	Defense Objection	Defense	TAC		Key Au- thority	Cal. Supreme Court Anchor	Bench Brief/SAC Back-Reference
		MPA Basis	TAC Cure	Sec- tion/¶¶			
9	Ultimate admission cures fraud (“it got in on Day 7”)	Late admission moots extrinsic-fraud injury	New §IV.5.5 and ¶¶ 34.5–34.6 mea-sur-ing de-pri-va-tion at opportunity-to-present, not at ad-mis-sion; Memo § V.G	TAC §IV.5.5, ¶ 34.7; ¶¶ 34.5–34.6; Memo § V.G	—	<u>Westphal</u> , 20 Cal.2d at 397; <u>Kulchar</u> , 1 Cal.3d at 471; <u>Modnick</u> , 33 Cal.3d at 907; <u>Sanders</u> , 40 Cal.3d at 616 (quoting <u>Larrabee v. Tracy</u> (1943) 21 Cal.2d 645, 650–651)	Memo § I.F; TAC Eighth Cause of Action

DETAILED CURE ANALYSIS

OBJECTION 1: KULCHAR EXTRINSIC-FRAUD FRAMEWORK NOT PLEADED

Defense Argument: The complaint fails to plead the elements of an independent action in equity under Kulchar v. Kulchar (1969) 1 Cal.3d 467.

TAC Cure:

- ¶ 1: Identifies action as independent action in equity under Kougasian/Olivera/Stevenot
- ¶ 2: Distinguishes from appeal, motion for new trial, or collateral attack
- ¶ 3: Four-channel Kulchar framework pleaded element-by-element:
 - (a) Concealment of facts (production history)
 - (b) False promises/representations of non-receipt
 - (c) Keeping Plaintiff in ignorance (893-day silence)
 - (d) Misleading the tribunal (categorical denials)
- ¶¶ 4–6: Judicial-reliance quote and seven consequential rulings

Authority: Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028, 1032–35

Cal. Supreme Court Anchor: Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471 (“fair adversary hearing” primary right); In re Marriage of Modnick (1983) 33 Cal.3d 897, 905 (broad-concept extrinsic fraud); Estate of Sanders (1985) 40 Cal.3d 607, 614 (fiduciary-breach conversion to extrinsic). TAC installs these anchors at new §I.4.5 (¶¶ 3.5–3.7) and new ¶ 7.5.

Back-Reference: Bench Brief §§ I.A-I.C (judicial reliance sequence)

OBJECTION 2: APPEAL A173827 IS THE REMEDY

Defense Argument: Plaintiff’s remedy is the pending appeal; no independent action is cognizable.

TAC Cure:

- ¶¶ 28–29: Distinguishes appeal (instructional error) from this action (institutional fraud)
- ¶ 30: Cites Kougasian and Stevenot for parallel-remedy principle
- ¶ 31: Pre-rebuts Throckmorton as non-binding federal authority

Authority: In re Marriage of Stevenot (1984) 154 Cal.App.3d 1051; Kougasian, 118 Cal.App.4th at 1034–36

OBJECTION 3: LITIGATION PRIVILEGE BARS CLAIMS

Defense Argument: All claims are barred by the absolute litigation privilege under Civil Code § 47(b).

TAC Cure:

- ¶ 8: Identifies conduct as non-communicative (silence, file-transfer, failure to correct)
- ¶ 9: Nine-Point Evidentiary Chain documenting 893 days of defense possession
- ¶¶ 10–11: Flatley illegality exception (Bus. & Prof. Code § 6128(a))
- ¶ 12: Action Apartment extrinsic-fraud carveout
- ¶ 13: Throckmorton pre-rebuttal

Authority: - Rusheen v. Cohen (2006) 37 Cal.4th 1048 (non-communicative conduct) - Flatley v. Mauro (2006) 39 Cal.4th 299, 320–325 (illegality exception) - Action Apartment Ass’n v. City of Santa Monica (2007) 41 Cal.4th 1232, 1248–49 (extrinsic-fraud carveout)

Cal. Supreme Court Anchor: Estate of Sanders (1985) 40 Cal.3d 607, 614 (equity exception for officer-of-court fraud); In re Marriage of Modnick (1983) 33 Cal.3d 897, 907 (denial of existence as extrinsic concealment).

Back-Reference: SAC-06 §IV.D.0 (Nine-Point Chain); Bench Brief §IV.E

OBJECTION 4: LACK OF STANDING (SHAOLIAN/NORTON)

Defense Argument: Plaintiff lacks standing to sue defense attorneys due to attorney-client privity requirements.

TAC Cure:

- ¶ 15: Shaolian distinction (policy benefits vs. fraud-on-court)
- ¶ 15(c): Estate of Sanders (fraud-on-court parties)
- ¶¶ 16–17: Civ. Code § 2338 agency/ratification
- ¶ 18: Doctors’ Company aiding-and-abetting framework

1 • ¶ 19: § 6128(a) independent tort under Rickley/Shaffer

2 • ¶¶ 20–21: Civ. Code § 1573 constructive fraud

3 **Authority:** - Estate of Sanders (1985) 40 Cal.3d 607, 615–616 - Doctors’ Company v. Superior
4 Court (1989) 49 Cal.3d 39 - Rickley v. Goodfriend (2013) 212 Cal.App.4th 1136

5 **Cal. Supreme Court Anchor:** Estate of Sanders (1985) 40 Cal.3d 607, 615 (officer-of-court fidu-
6 ciary duty runs to adjudicative integrity; opposing party has equity standing regardless of privity).
7 TAC installs this anchor at new ¶ 15.5 and at new Eighth Cause of Action.

8 **Back-Reference:** Bench Brief §II.F; SAC-06 ¶¶ 7–14 (party block)

10 **OBJECTION 5: COLLATERAL ESTOPPEL / RES JUDICATA**

11 **Defense Argument:** Action is a collateral attack on a valid judgment barred by res judicata.

12 **TAC Cure:**

13 • ¶ 22: Distinct primary right: freedom from fraud on the court

14 • ¶ 24: Five-issues-not-adjudicated block

15 • ¶ 25: Primary-rights comparison table

16 • ¶¶ 26–27: Mycogen/Crowley/Lucido recital

17 **Authority:** - Lucido v. Superior Court (1990) 51 Cal.3d 335 - Mycogen Corp. v. Monsanto Co.
18 (2002) 28 Cal.4th 888, 904 - Boeken v. Philip Morris USA, Inc. (2010) 48 Cal.4th 788, 798

19 **Cal. Supreme Court Anchor:** Mycogen, 28 Cal.4th at 904 (primary right = injury suffered);
20 Boeken, 48 Cal.4th at 798 (primary right independent of forum); Crowley v. Katleman (1994)
21 8 Cal.4th 666, 681–682 (separate injuries → separate primary rights); Lucido, 51 Cal.3d at 341
22 (actually-litigated + necessarily-decided). TAC installs these at new ¶ 26.5.

23 **Back-Reference:** SAC-06 §IV.B (Issues Not Adjudicated)

25 **OBJECTION 6: CCP § 1032 PREVAILING-PARTY OVERLAP**

26 **Defense Argument:** Plaintiff seeks to recover costs already adjudicated under § 1032.

27 **TAC Cure:**

28 • ¶ 32(b): Express disclaimer — Plaintiff does not seek to recover prevailing-party costs from

underlying trial, except to the extent such costs would be vacated as a consequence of vacating the underlying judgment.

OBJECTION 7: DAMAGES DUPLICATIVE OF PI CASE

Defense Argument: Plaintiff seeks to recover PI damages already litigated in CGC-21-594102.

TAC Cure:

- ¶ 32: Express disclaimers:
 - (a) No PI damages from underlying action
 - (b) No prevailing-party costs (except via vacatur)
 - (c) No duplicative 802 damages
 - (d) No pro-per attorney’s fees
- ¶¶ 33–34: Partial-presentation rebuttal
- §IV.5.5, ¶ 34.7: Deprivation measured by opportunity to present, not admission
- §VI, Tier 2, ¶ 36: Fraud-delta limitation on compensatory relief

Cal. Supreme Court Anchor: Westphal v. Westphal (1942) 20 Cal.2d 393, 397; In re Marriage of Modnick (1983) 33 Cal.3d 897, 907 (measure is deprivation of opportunity, not exhibit count).

OBJECTION 8: IIED / RIBAS CLAIM IMPROPER

Defense Argument: Plaintiff improperly asserts a standalone IIED claim barred by Ribas or § 47(b).

TAC Cure:

- ¶ 38: No standalone IIED cause of action asserted
 - Emotional distress pleaded only as Tier 4 equity factor supporting prejudice, not as independent tort
-

OBJECTION 9: ULTIMATE ADMISSION CURES FRAUD (“IT GOT IN ON DAY 7”)

Defense Argument (Anticipated): The Day-7 admission of the 911 audio, after Defendant Abdelhalim authenticated it as his own voice, retroactively cures any prior concealment and moots the extrinsic-fraud injury.

TAC Cure:

- **§IV.5.5, ¶ 34.7:** Installs the Supreme Court deprivation rule — Westphal, Kulchar, Modnick, Sanders — as a four-test foreclosure of the Day-7 defense.
- **¶ 34.5:** Applies Modnick 907 “fairly before the court for adjudication” standard to the seven rulings issued within the corrupted record.
- **¶ 34.6:** Applies Sanders 616 / Larrabee 650–651 “effectively prevented” standard to the Court’s decision-making matrix.
- **¶ 33 (edited):** Embeds Westphal 397 “opportunity to present” and Kulchar 471 “fair adversary hearing” into the partial-presentation rebuttal.
- **Eighth Cause of Action (¶¶ 81–87):** Officer-of-the-court fiduciary-duty theory anchored in Sanders 615.
- **Memo § V.G:** Parallel argument in the memo.

Authority (Cal. Supreme Court Only):

- Westphal v. Westphal (1942) 20 Cal.2d 393, 397 (extrinsic = “prevented from exhibiting fully his case”)
- Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471 (primary right = “fair adversary hearing”)
- In re Marriage of Modnick (1983) 33 Cal.3d 897, 907 (“never fairly before the court for adjudication”)
- Estate of Sanders (1985) 40 Cal.3d 607, 616 (conduct that “effectively prevented ... a fair adversary hearing”), quoting Larrabee v. Tracy (1943) 21 Cal.2d 645, 650–651

Cal. Supreme Court Anchor: All four holdings above. The Supreme Court has located the operative injury at the point of deprivation of opportunity, not at the point of eventual admission. The Day-7 leak-through of a single exhibit does not retroactively cure the seven structural rulings

issued within the corrupted Modnick record.

Back-Reference: Memo § I.F; Memo § V.G; TAC Eighth Cause of Action.

CROSS-REFERENCE: TAC SECTIONS TO DEFENSE OBJECTIONS

TAC Section	Title	Cures Objections
I	Character of the Action	1
I.4.5	Supreme Court– Recognized Right to a Fair Adversary Hearing (¶¶ 3.5–3.7)	1, 9
I.5	Court’s Articulated Reliance	1
II	Non- Communicative Conduct Block	3
III	Standing Block (incl. ¶ 15.5 officer-of-court fiduciary duty)	4

TAC Section	Title	Cures Objections
IV	Primary Rights Statement (incl. ¶ 26.5 four-Supreme-Court recital)	5
IV.5	Appeal Non-Preclusion	2
IV.5.5	Measure of Deprivation: Opportunity to Present, Not Admission (¶ 34.7)	7, 9
V	Reservation Paragraph (incl. ¶¶ 34.5–34.6 <u>Modnick/Sanders</u> standards)	6, 7, 9
VI	Tiered Prayer for Relief	8
VII	Party-Specific Allegations	—
VIII	Day-7 Admission Foundation	1, 3, 9

TAC Section	Title	Cures Objections
IX	Laws-Broken Catalog	3
Eighth CoA	Extrinsic Fraud by Officer-of-Court Fiduciary Breach (¶¶ 81–87)	4, 9

UNCURED GAPS (ACKNOWLEDGED FOR STRATEGIC PURPOSES)

The following items are **not** cured by the TAC and are acknowledged for strategic transparency:

Gap	Reason Not Cured
Anti-SLAPP cross-briefing	Handled separately; TAC notes CCP § 425.17 exemptions only
CSAA “did not actually litigate” imputation defense	Addressed via Civ. Code § 2338 ratification; CSAA funded, directed, and approved litigation posture

VALIDATION CHECKLIST

- ☒ All eight defense objections mapped to TAC cure
- ☒ Each cure supported by legal authority and/or factual specificity
- ☒ Day-7 admission attributed to Navaratnasingham (RT 7 p. 213:13–15)
- ☒ Judicial-reliance quote included (Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7)

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